

HEADNOTE

- “1. Under Rule 271 RoP, a Statement of claim, even if it refers to or announces the later submission of Annexes, can be validly served on a defendant, provided that the Statement of claim without the Annexes enables the defendant to assert its rights in legal proceedings before the courts of the UPC. A Statement of claim must therefore at least state with certainty the subject matter and cause of action.*
- 2. Given the purpose of Rule 13.2 RoP as set out above, if a claimant did not upload the Annexes simultaneously with the Statement of claim in the CMS, and thus did not comply with Rule 13.2, and as a consequence these have not been available when the representative of the defendant accessed the CMS with the Access Code contained in the Notice, this in itself is sufficient to constitute a reasoned request by a defendant for an extension of the terms mentioned in Rules 19.1 and 23 RoP for lodging a Preliminary objection and the Statement of defense, regardless of the nature and/or content of the Annexes.*
- 3. Failing any specific circumstances of an individual case which calls for another term, which have to be brought forward by the claimant, the extension of the terms mentioned in Rules 19.1 and 23 shall compensate for and thus be equal to the period during which the Annexes have not been available after service of the Statement of claim contrary to Rule 13.2 RoP.”*

COURT
Court of Appeal Luxembourg

PATENT

KEYWORDS

PROCEEDINGS
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Service of the Statement of claim without a...

term extension

presiding judge

Rule 271 Service of the Statement of claim

SUMMARY

The Court of Appeal in Luxembourg issued a procedural order. According to the headnotes of the decision, a Statement of claim can be validly served on a defendant even if annexes are submitted later, provided the Statement itself clearly identifies the subject matter and cause of action so the defendant can defend its rights. When a claimant fails to upload annexes simultaneously with the Statement of claim as required, a defendant's request for an extension of time to file preliminary objections and its defense is automatically justified, regardless of what those annexes contain. In the absence of special circumstances presented by the claimant, the extension of time granted should equal the period during which the annexes were unavailable after service of the Statement of claim.